

CR5-85

RESOLUTION 88-85
CHICKASAW TRIBAL LEGISLATURE
May 20, 1988

Amendments to Enactment #19A

WHEREAS, the Chickasaw Tribal Legislature is the recognized governing body of the Chickasaw Nation, and

WHEREAS, the Tribal Legislature shall prescribe election procedures and regulations for tribal election in accordance with the Constitution of the Chickasaw Nation, Article VII, Section 6, and

WHEREAS, the Chickasaw Legislature has written a good set of Election Rules and Procedures, and

WHEREAS, the Chickasaw Legislature finds a need to amend the Election Rules and Regulations and to provide definitions for the Election Secretary and Tribal Registrar.

NOW, THEREFORE, BE IT RESOLVED, that Section 3 of Enactment 19A definitions be amended as follows:

Addendum

(10) Election Secretary shall mean the person chosen to oversee the day-to-day procedures of the tribal elections.

(11) Tribal Registrar shall mean the tribal employee designated by the Governor to perform, the duties of voter registration.

BE IT FURTHER RESOLVED, that the sections of the Election Rules and Regulations beginning with Part I be amended as follows:

In all sections "voter registrar" will be changed to read "tribal registrar".

Part I, Article III, Section 3: (Election Ballot Counters), Omit the entire section.

Part I, Article III, Section 4: (Election Counter Provision), Omit the entire section.

Part II, Article II, Section 2: (Filing Fees) Add this sentence to the end of the section, "A copy of this fee shall be kept and made available to the public for inspection."

Part III, Article I, Section I: (Voter Eligibility) sub-section b, The sentence, "This requirement shall become effective on April 1, 1987." shall be omitted.

Part III, Article I, Section 2: (Voter Registration) In the first sentence replace the word in with the word at.

Part III, Article I, Section 3: (Voter I.D. Card) Add this sentence to the end of the section, "No political affiliation shall be listed on any card or registration form."

Part III, Article I, Section 4: (Voter Registration Closing Date) Add this sentence to the end of the section, "It shall be the responsibility of the Secretary for switching of districts only during time registration is open."

Part III, Article I, Section 6: (Voter Affiliation) Omit the last two sentences.

Part III, Article II, Section 2: (Candidate's Challenge) Omit the period at the end of the sentence and finish the sentence to read, "...and presented to the secretary or designee."

Part IV, Article I, Section 5: (Total Voter Information) Delete the last sentence which reads, "Outer envelope, postage paid."

Part IV, Article I, Section 12: (Fairness) Omit the entire section...

Part IV, Article II: Omit this Article and re-number Articles.

Part IV, Article III, Section 5: (Three Day Recount) The last sentence shall read, "Each judge shall obtain his own lock and both keys."

Part IV, Article III, Section 8: (Permission) Strike the period at the end of the sentence and finish the sentence to read, "...and/or Election Commission chairman."

Part IV, Article IV, Section 5: (Watcher Objection) The last sentence shall read, "The Election Secretary and at least two commissioners shall rule on such ballots at his/her earliest convenience."

Part IV, Article IV, Section 6: (Watcher Secrecy) Omit the wording of the section and replace it to read, "Watcher shall not divulge any information or give any indication, as to the results of the count, and shall not leave the counting place without permission

from the commission chairman until the election count is complete.

Part IV, Article V, Section 1: (Recount Permission)
Add the following sentence to the section, "Once a recount has been requested and established the date shall be furnished to the candidate and watchers shall be notified by the election secretary."

Part IV, Article V, Section 2: (Recount Fee) This sentence shall be added to the end of the section, "This check or a copy of it shall be available for public inspection. The recount fee shall not be refunded if a recount is held."

Part IV, Article VI, Section 2: (Runoff Procedure)
Strike the last sentence of the section.

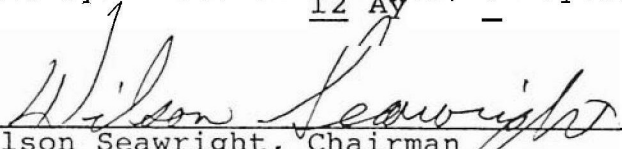
The following shall be added to the last page:

Part Seven

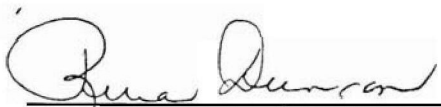
Article I - Bid Solicitation

Section 1: The Election Commission in cooperation with the Executive Department shall solicit and receive contract negotiation bids to include the cost of ballot counting, printing, and mailing of ballots, envelopes, instructions and other material or services needed to conduct a tribal election. These bids shall come from reputable, independent sources. No bids shall be accepted from a source that in any form could be construed to reflect on the integrity of the election.

Executed this 20th day of May, 1988 in **regular** session of the Chickasaw Tribal Legislature by a vote of 12 Ayes, 0 Nays, and 0 Abstentions.



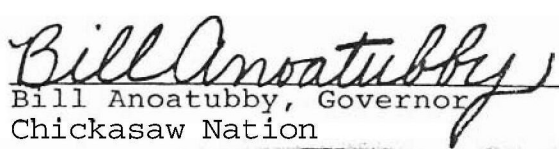
Wilson Seawright, Chairman
Chickasaw Tribal Legislature



Rena Duncan, Secretary
Chickasaw Tribal Legislature

Concur:

if



Bill Anoatubby, Governor
Chickasaw Nation

Date JUN 22 1988